2989

Executive Order.

WEISER NATIONAL FOREST, IDAHO.

Under authority of the act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Weiser National Forest, as modified by proclamation of June 30, 1911, be further modified by excluding therefrom the following described lands in the State of Idaho:

In T. 16 N., R. 2 W., SE¼ Sec. 21, E½ SE¼ Sec. 29, S½ Sec. 30;
In T. 16 N., R. 3 W., S½ Sec. 25;
In T. 16 N., R. 5 W., E½ NW¼ Sec. 24;
In T. 15 N., R. 6 W., E½ Sec. 1;
Boise Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of the above described lands subject to disposition should be restored to homestead entry in advance of settlement or other forms of disposition, it is hereby ordered, under authority of the act of September 30, 1913 (38 Stat., 113), that the public lands in the above described areas, subject to valid rights, shall be opened to entry only under the provisions of the homestead laws requiring residence, at and after, but not before nine o'clock A. M., standard time, January 15, 1919, and to settlement and other disposition under any public land law applicable thereto, at and after, but not before nine o'clock A. M., standard time, January 22, 1919. Prospective applicants may, during the period of twenty days preceding the date on which the lands shall become subject to entry, selection, or location of the form desired under the provisions of this order, execute their applications in the manner provided by law and present the same accompanied by the required payments, to the United States Land Office at Boise, Idaho, in person, by mail, or otherwise, and all applications so filed together with such as may be submitted at the hour fixed shall be treated as though simultaneously filed and shall be disposed of in the manner prescribed by existing regulations. Under such regulations, conflicts of equal rights will be determined by a drawing.

Warning is hereby given that no settlement initiated prior to seven days after the date for homestead entry above named will be recognized, but all persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon prior to nine o'clock A. M., standard time, January 22, 1919, or who are on or are occupying any part of said lands at such hour, except those having valid subsisting settlement rights initiated prior to withdrawal from settlement and since maintained, and those having preferences to make entry under the provisions of the act of Congress approved June 11, 1906 (34 Stat., 233), entitled "An Act To provide for the entry of Agricultural lands within forest reserves", and Acts amendatory, will be considered and dealt with as trespassers and will gain no rights whatever under such unlawful settlement or occupancy: *Provided*, however, that nothing herein contained shall prevent persons from going upon and over the lands to examine them with a view to thereafter appropriating them in accordance herewith. Persons having prior settlement rights, as above defined, will be allowed to make entry in accordance with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
11 November, 1918.

[No. 2989.]